

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

January 9, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

ELECTION OF CITY COUNCIL PRESIDENT FOR 2012. Mayor Kaysen noted for the record that, pursuant to City Code, he would be conducting the elections for City Council President and Vice-President but would not be voting. Mayor Kaysen stated nominations for election of the office of Council President was in order. Mr. Valdez moved to nominate and elect Mr. Collins as City Council President for 2012, seconded by Mr. Pierson. Mr. Brown moved that nominations cease, seconded by Mr. Allen. Motion to cease nominations carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote. Mr. Collins advised he is looking forward to serving as Council President for 2012 and noted there are many projects to address during the upcoming year. Motion to nominate and elect Mr. Collins carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote.

ELECTION OF CITY COUNCIL VICE-PRESIDENT FOR 2012. Mayor Kaysen stated nominations for election of the office of Council Vice-President was in order. Mr. Collins moved to nominate and elect Mr. Pierson as City Council Vice-President for 2012, seconded by Ms. Broyles. Mr. Collins moved that nominations cease, seconded by Mr. Brown. Motion to cease nominations carried. Voting "yes"-- all members of the governing body with the exception of Mayor Kaysen who did not vote. Mr. Pierson advised he considered it an honor to serve as a part of Council leadership. Motion to nominate and elect Mr. Pierson carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote.

On behalf of the governing body, Mayor Kaysen recognized outgoing 2011 Council President Dr. Rinne, and presented him with an engraved gavel plaque. He also expressed appreciation to Mr. Brown for serving as Council Vice-President for 2011.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Dr. Rinne, and pursuant to support received by Mr. Collins and Mr. Brown, agenda items #15 and #18 were removed from the Consent Agenda. Upon request by Mr. Pierson, and pursuant to support received by Mr. Collins and Ms. Ash, agenda item #22(a) was removed from the Consent Agenda. Mr. Allen moved to approve remaining

Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting “yes” -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on December 27, 2011. Motion (per Consent Agenda) carried.

Mr. Brown and Mr. Valdez each declared a conflict of interest (business interest in vouchers payable to Ameri-Tech HVAC Services and Radio Station KYOY FM respectively) and vacated Council Chambers. Mr. Spiker moved to approve payment of vouchers as presented, seconded by Mr. Allen. Upon inquiry regarding a voucher payable to Ayres Associates for Lake Minnehaha remediation, Rick Parish, Parks and Recreation Director, provided an update on the project, which involves DEQ grant funding. Upon inquiry, Lois Huff, City Treasurer, reviewed a voucher payable to Ashley Furniture (\$1,175.00) for furniture for Youth Alternatives Special Friends program. Comments followed whether this was an allowable expenditure under the CCLC Cohort grant used to purchase the furniture. Ms. Ash moved to divide the question to allow for a separate vote on the voucher payable to Ashley Furniture, seconded by Mr. Collins. Upon inquiry, Ms. Huff advised the furniture has most likely already been delivered since the voucher was on the payables list. Comments followed regarding grant stipulations. Dr. Rinne raised a point of order with regard to the motion to divide the question being non-debatable with Mayor Kaysen concurring that the motion was non-debatable. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers with the exception of Ms. Broyles and Mr. Pierson voting “no”. Dr. Rinne moved to approve payment of the voucher to Ashley Furniture, seconded by Mr. Collins. Discussion followed regarding payment of the voucher and whether another funding source could be utilized if it were ascertained that the furniture purchase did not qualify under grant requirements. Ms. Huff clarified another funding source could be used to pay for the furniture and she could adjust the payment source through a fund transfer. Further comments followed regarding grant compliance. Motion to approve payment of the voucher to Ashley Furniture carried. Voting “yes” -- all members of the governing body present in Council Chambers. Upon inquiry regarding a voucher payable to Americoach of Cheyenne Charters LLC for chartering 2 buses for a Youth Alternatives activity, which also utilized Cohort grant funding, Ms. Ash advised she oversees this grant as part of her employment duties and stated it is an allowable expense under the grant. Motion to approve remaining vouchers for payment carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Brown and Mr. Valdez returned to Council Chambers.

Ordinance annexing to the City of Cheyenne, Wyoming, a parcel of land being situated in a portion of the Northeast Quarter (NE1/4) of Section 1, Township 13 North, Range 67 West of the 6th P.M., Laramie County, Wyoming (generally located north of and adjacent to West Lincolnway and east of and adjacent to the BNSF Railroad). Reporting for Public Services Committee, Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” -- all members of the governing body. (#3941)

Ordinance amending Chapter 5.08, Business License Fees, Section 5.08.010, Amusements, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code pertaining to the license fee for conducting a theater business. Reporting for Finance Committee, Mr. Valdez moved to

approve on third and final reading, seconded by Mr. Collins. Motion carried. Voting “yes” -- all members of the governing body. (#3942)

Ordinance creating Section 10.52.240, Parking of Oversized Vehicles, Trailers, and Semi-trailers in Residential and Mixed Use Districts, Prohibited, of Chapter 10.52, Stopping, Standing and Parking generally, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming. Reporting for Committee of the Whole, Dr. Rinne stated there was no recommendation on the item from the Committee. As sponsor of the ordinance, Ms. Broyles expressed appreciation to the public, council and staff who had provided input on the proposed ordinance, indicating she plans to continue working on the topic to bring forward proposed changes, and requested the ordinance be withdrawn from the agenda. Upon query by Mayor Kaysen and with no objections being raised by City Council members, Mayor Kaysen announced the item was being withdrawn from the agenda.

Ordinance repealing Ordinance No. 3408, as amended, which adopted the “Cheyenne-Laramie County Subdivision/Development Regulations 2000,” and repealing Ordinance No. 3720, as amended, which adopted the “2006 Road, Street, and Site Planning Design Standards,” and repealing Title 17, Zoning, of the Cheyenne City Code 2002, in its entirety, and adopting the “Cheyenne Unified Development Code,” which is attached hereto as Exhibit A and fully incorporated herein by reference. Donn Edmunds commented on the availability of the document proposed for approval. Paul Frauendienst, member of the committee involved in reviewing and providing input on the proposed Unified Development Code, spoke in support of the revised code. He stated the code will provide a new framework to build Cheyenne and that modifications may be required as plans move forward. He provided information on an annual review process that will be in place, stating the Critical Path Committee has some recommendations for future consideration, and noted committee members who helped review and draft the document. Mr. Collins moved to approve on second reading with UDC Amendments A1 through A6, UDC proof-read corrections, and an ordinance effective date of April 1, 2012, seconded by Ms. Broyles. Comments followed regarding interpretation of the new code and the desire to be more business friendly, size of signs posted on property sites advising the public of pending development or redevelopment plans, and the annual code review process. Upon inquiry, Brandon Cammarata, Planning and Development Director, provided information on sign notification requirements posted for public awareness and stated staff is researching and evaluating the public communication process to provide more information through electronic means (on-line accessibility) on development projects. Motion carried. Voting “yes” -- all members of the governing body.

Resolution designating local banks as depositories for municipal funds. Mr. Collins and Mr. Spiker each declared a conflict of interest (board member affiliation with certain financial institutions) and vacated Council Chambers. Mr. Valdez moved to adopt, seconded by Mr. Brown. Motion carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Collins and Mr. Spiker returned to Council Chambers. (#5343)

Resolution designating the Sundays during 2012 that annual liquor licensees may extend dispensing room hours of operation for sales until 2:00 A.M. the following day. Bryan Grzegorzcyk, President, Laramie County Liquor Association, spoke in support of the resolution and provided

information on the Association's close communication with local law enforcement on drinking and driving prevention efforts, noting the Association's taxi ride for patrons program and the Association's various fund raisers and charity work benefitting the community. Mr. Valdez stated there was no recommendation on the item from Finance Committee. Mr. Collins moved to adopt, seconded by Mr. Brown. Mr. Grzegorzczuk reviewed the dates of the four Sundays in 2012 being requested, which are Feb. 5 (Super Bowl Sunday), July 22 (first Sunday of Frontier Days), Sept. 2 (Sunday of Labor Day weekend) and Dec. 16 (holiday parties) and stated the Association's membership voted on the proposed dates. Upon inquiry whether there was any data reflecting DUI offenses for the Sunday hours approved for 2011, Mr. Grzegorzczuk advised he did not have any specific statistics but that overall DUI's are down by about 33% and Brian Kozak, Police Chief, advised he would provide DUI information for the past year to members of the governing body. Comment followed in opposition to the legislation allowing for extension of Sunday hours. Appreciation was expressed to Mr. Grzegorzczuk for his assistance involving a recent tragedy in the community. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mr. Pierson and Mr. Spiker voting "no". (#5344)

Resolution authorizing the Mayor and City Clerk to execute the attached Business Ready Community Grant and Loan Program Grant Agreement between the Wyoming Business Council and the City of Cheyenne to assist in making pedestrian and streetscape improvements to West Lincolnway, West 17<sup>th</sup> Street, Thomes Avenue and Pioneer Avenue adjacent to Block 392, Original City of Cheyenne, Wyoming. Mr. Valdez moved to adopt, seconded by Mr. Allen. Discussion followed regarding potential funding and grant availability to complete improvements on 17<sup>th</sup> Street. Upon inquiry, Matt Ashby, Planning Services Director, advised staff and the Downtown Development Authority (DDA) are working together to identify potential sources to fund the remaining area. Motion carried. Voting "yes" -- all members of the governing body. (#5345)

[CA] Resolution authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government Grant Agreement for attendance at the 2012 Saving Places Conference (State Historic Preservation Office grant). Motion (per Consent Agenda) carried. (#5346)

[CA] Resolution authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government Grant Agreement for historic building analysis and case studies of historic buildings (State Historic Preservation Office grant). Motion (per Consent Agenda) carried. (#5347)

Resolution authorizing the Mayor and City Clerk to execute a State Historic Preservation Office Certified Local Government Grant Agreement for an International Code Council Class on building codes and historic buildings (State Historic Preservation Office grant). Mr. Valdez moved to adopt, seconded by Mr. Brown. Discussion followed on comments that had been received from some property owners expressing difficulty with current building code requirements relative to redevelopment efforts involving historic downtown buildings, and that the codes sometimes are not conducive to historic building redevelopment projects. Upon inquiry, Matt Ashby, Planning Services Director, stated the training, which will be available to the building inspectors and property owners of historic buildings, can assist in creating a better environment of understanding between

the parties on code provisions to help facilitate redevelopment of historic buildings. Following further comment regarding conflicts with codes and redevelopment of historic building efforts, particularly in the downtown area, motion carried. Voting “yes” -- all members of the governing body. (#5348)

Resolution determining and prioritizing City of Cheyenne projects to be proposed to the 1% Specific Purpose Sales Tax Committee for potential inclusion on the 1% Specific Purpose ballot proposition to be presented to qualified electors of Laramie County during the August 21, 2012 primary election. Donn Edmunds, speaking on behalf of a group of eastern Laramie County residents, commented on the proposed Christensen Road Overpass project, noting a petition had been submitted to WYDOT and expressing concerns with the project specific to the Pershing Blvd. area. Lynn Simons, speaking on behalf of the Friends of the Botanic Gardens Foundation, provided a brief review of the age of the current facility and the need for improvements and past history of 6<sup>th</sup> penny Botanic Gardens funding requests, and noted private donations have assisted toward many site improvements. John Palmer questioned the pending projects list, expressing concerns with lack of the landfill expansion project being included; commented on “needs vs. wants” and stated a concrete plan needs to be determined prior to submitting the ballot question to voters. Mayor Kaysen confirmed proposed projects being considered would be addressed pursuant to the report from the Committee of the Whole. Reporting for Committee of the Whole, Dr. Rinne moved to adopt, seconded by Mr. Collins. Dr. Rinne moved to amend by substitute, seconded by Mr. Pierson. It was noted the proposed substitute resolution does not provide for prioritization of any project (i.e. no items assigned a priority number), and contains the following proposed projects and funding amounts: Lower Capitol Basin Life-Safety Public Improvements (\$4,800,000.00); Landfill equipment (\$3,000,000.00); Public Safety Building (\$25,000,000.00); Christensen Overpass (\$1,500,000.00); Aerial Fire Truck Grant Match (\$600,000.00); Municipal Pool Repair and Renovation (\$5,000,000.00); Greenway Construction (\$2,800,000.00); Botanic Gardens Construction (new conservatory) (\$16,000,000.00); Recreation Center (\$33,000,000.00), and new Airport Terminal (\$4,831,157.00), for a total amount of \$96,531,157.00. Speaking on the proposed substitute were: John Palmer, expressing concern with a new recreation center and supporting inclusion of a landfill expansion project on the projects listing; Kevin Paintner, referencing past information that had been provided on a proposed rec center and commenting in support of a rec center, submitting information (on file with City Clerk’s office) and citing cost recovery comparables for other communities that have built rec centers; Donn Edmunds, encouraging consideration of other projects and total dollar amounts being requested by the county and outlying towns and stating his belief the resolution is premature at this time; John Volk, speaking in support of the 6<sup>th</sup> penny ballot process and the importance of compromising and working together with the other county governmental entities on proposed projects; Matt Pope, Rec Center project group, expressing appreciation for the opportunity to communicate needs and wants to better the community and commenting on the cost recovery issue, noting a lot of parks and recreation areas are subsidized, and Morgan Burke, speaking in support of a rec center, noting the lack of available facilities to practice youth basketball and benefits overall of a facility for youth activities. During comments, Mayor Kaysen and Mr. Collins reviewed the Specific Purpose Committee process and the Committee’s upcoming meeting schedule respectively. Mayor Kaysen confirmed that another resolution would be proposed at a future meeting with regard to projects and funding amounts for all of the county governmental entities involved (i.e. Laramie County, Cheyenne, Albin, Burns, Pine Bluffs), and

explained the necessary approval process by the entities for a ballot question(s) to be presented to voters. Mr. Brown moved to amend the proposed substitute by removing \$1,000,000.00 from the funding amount for the Botanic Gardens project (reducing from \$16,000,000.00 to \$15,000,000.00) and adding the 17<sup>th</sup> Street Pedestrian Lighting and Beautification project in the funding amount of \$1,000,000.00, seconded by Mr. Collins. Mr. Spiker declared a conflict of interest (owner of property located on 17<sup>th</sup> Street) and vacated Council Chambers. Pursuant to comment by Barbara Stafford, Board member, Friends of the Botanic Gardens, it was verified that the proposed funding amount, per the pending amendment, for the Botanic Gardens Conservatory project would be \$15,000,000.00. John Sundahl, Board President, Downtown Development Authority, referenced previous information that had been provided in support of the 17<sup>th</sup> Street project, noting he was available to answer any questions. Comments followed with regard to clarification of the proposed amendment and lack of prioritization of projects as contained in the proposed substitute. Mr. Pierson raised a point of order that comments regarding prioritization were not applicable to the motion on the floor with Mayor Kaysen ruling comments should be germane to the motion on the floor, which is the motion to amend as moved by Mr. Brown and seconded by Mr. Collins. Motion to amend the substitute carried. Voting “yes” -- all members of the governing body present in Council Chambers. Following announcement of the vote, Mr. Spiker returned to Council Chambers. Discussion followed and included the following topics: Support as well as non-support for prioritizing City projects; Specific Purpose Committee meeting schedule; the Committee’s preferred sales tax revenue collection time frame (approximately 5 years) and total amount to present to voters, including the estimated amount of \$55 to \$57 million dollars for City projects; providing an opportunity for voters to decide which projects should be funded; importance of communication of City supported projects to Specific Purpose Committee members, and verification that the proposed substitute to be voted upon was the one recommended at the Committee of the Whole meeting, as amended at the current meeting. Dr. Rinne moved to amend the substitute, as previously amended, by removing the term “non-” before the word “prioritized” as referenced in the resolution, seconded by Mr. Allen. Speaking on the proposed amendment were: Matt Pope, commenting on the Rec Center committee’s work over the past months and supporting input from the public on a new rec center, and questioning how the order of listing of projects in the resolution were developed; Brian Tyrrell, commenting that every project is a priority and one should not take precedence over another; Dave Cook, stating concern that the issue of prioritization had not previously been fully discussed, and requesting the governing body not prioritize projects and proposing a menu-style ballot question be submitted to voters; Christina Mayle, questioning what the priority list would be, and Tom Toft, commenting in support of the rec center not being culled from the list and affording people the chance to vote on projects. Mayor Kaysen advised, if the motion to amend carried, the projects would be prioritized as follows (re: as listed in the previously approved substitute resolution as amended at the current meeting): Lower Capitol Basin; Landfill Equipment; Public Safety Building; Christensen Overpass Planning; Aerial Fire Truck Grant Match; Municipal Pool Repair and Renovation; Greenway Construction; Botanic Gardens construction of new conservatory; Recreation Center; Airport Terminal and 17<sup>th</sup> Street Pedestrian Lighting and Beautification. Following a 10 minute recess, Mayor Kaysen reconvened the meeting at 8:15 p.m. Motion to amend by removing the term “non-” before the word “prioritized” failed. Voting “no” -- all members of the governing body. Motion to amend by substitute resolution, as previously amended, carried. Voting “yes” -- Mr. Allen, Ms. Broyles, Mr. Pierson, Mr. Spiker, Mr. Valdez and Mayor Kaysen. Voting “no” -- Ms. Ash, Mr.

Brown, Mr. Collins and Dr. Rinne. Main motion as amended by substitute, as amended, carried. Voting “yes” -- all members of the governing body. (#5349)

[CA] Resolution authorizing the Mayor and the City Clerk to sign a County Final Plat for A & M Subdivision, 2<sup>nd</sup> Filing, a replat of Lot 1, Block One, A & M Subdivision, Laramie County, Wyoming (located east of and adjacent to S. Greeley Highway, south of Prosser Road) -- referred to Public Services Committee.

[CA] Preliminary Plat for Gateway South, 3<sup>rd</sup> Filing, a replat of Lots 1, 2, 4 and 5, Block One, Gateway South, 2<sup>nd</sup> Filing, Cheyenne, Wyoming (located at the southeast corner of the intersection of W. Fox Farm Road and Walterscheid Boulevard) -- referred to Public Services Committee.

Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation for a railroad quiet zone project at the 24<sup>th</sup> St./BNSF Crossing (2007 - 2010 1% Sales Tax). Doug Vetter, City Engineer, clarified this is a cooperative agreement for grant assistance from the State through WYDOT and the City’s share would be approximately \$20,000, funded through the 1% street renovations budget line item. He explained the project would reconfigure the railroad crossing by placing raised medians in the center of the street as a safety improvement, eliminating a current potential vehicular crossing hazard. Mr. Valdez moved to approve, seconded by Mr. Spiker. Concern was raised regarding utilization of 1% street renovation money relative to other necessary road improvements. Motion carried. Voting “yes” -- all members of the governing body with the exception of Ms. Ash, Mr. Pierson and Dr. Rinne voting “no”. (#5785)

[CA] Contract between the City of Cheyenne and the United States Department of Homeland Security for a grant in the amount of \$100,000.00 for the City of Cheyenne Fire and Rescue Hazardous Materials Response Team and Regional Emergency Response Team # 7 -- referred to Finance Committee.

[CA] Contract between the City of Cheyenne, Parks and Recreation Department, and Coca-Cola North America, Atlanta, GA, for a Sprite® Parks Project grant in the amount of \$20,000.00 for the refurbishment of the Holliday Park basketball courts -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne and the 37<sup>th</sup> Helicopter Squadron of the United States Air Force for use of the Belvoir Ranch for helicopter training -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5726 between the City of Cheyenne, Parks and Recreation Department, and Simon Contractors, Cheyenne, Wyoming, for fence alignment, additional fill, crushed rock base and other changes for the East Cheyenne Greenway Phase IIb (UPRR Underpass) Project (Greenway 1% Specific Purpose Sales & Use Tax funds). Motion (per Consent Agenda) carried (amount not to exceed \$9,600.00). (#5726)

[CA] Amendment No. 1 to Professional Services Contract No. 5624 between the City of Cheyenne on behalf of the Cheyenne Metropolitan Planning Organization and AVI Professional Corporation for the Fox Farm Road Corridor Plan, Phase II (MPO Federal Planning funds). Motion (per Consent

Agenda) carried (amount of \$87,205.00). (#5624)

[CA] Consideration of Bid #M-8-12 for a contract for the Pioneer Park Baseball Lighting project between the City of Cheyenne, Parks and Recreation Department, and Superior Electric & Communications, Cheyenne, WY (State Loan and Investment Board funds) -- referred to Finance Committee.

[CA] Application for a Microbrewery Permit filed with the City Clerk's Office for Freedoms Edge Brewing Co., LLC d/b/a Freedoms Edge Brewing Co., 301 W. 16th Street, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

[CA] Application for a Microbrewery Permit application filed with the City Clerk's Office for Freedoms Edge Brewing 2, LLC d/b/a Freedoms Edge Brewing Co., 1509 Pioneer Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Re-Appointment of Paul M. Frauendienst to the Building Code Board of Appeals. Mr. Collins moved to approve, seconded by Mr. Pierson. Motion carried. Voting "yes" -- all members of the governing body with the exception of Mayor Kaysen who did not vote (Mayoral appointment).

Announcement was made that due to the Martin Luther King, Jr. Holiday on Monday, January 16, 2012, regularly scheduled City Council Committee meetings will instead be held in the Municipal Building, 2101 O'Neil Avenue, Room 122, Cheyenne, Wyoming, as follows: Finance Committee will meet Tuesday, January 17, 2012 at 11:00 a.m. and Public Services Committee will meet Wednesday, January 18, 2012 at Noon.

John Palmer questioned the 1% (6<sup>th</sup> penny) Specific Purpose Sales Tax Committee meeting place and time to be held on January 16<sup>th</sup> and whether this would be a public meeting. Mayor Kaysen advised the meeting is scheduled for 5:30 p.m. at the Align Building located on the Airport Parkway, and stated his understanding that the meeting was open to the public but that no public comment would be taken. Mr. Palmer expressed his concerns regarding the public participation process at governing body meetings involving agenda items.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 8:28 p.m.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

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